



TOWN OF WEST WARWICK

PUBLIC RECORDS PROCEDURE AND REQUEST FORM

Purpose

Rhode Island Residents are entitled to access to public records pursuant to the relevant provisions of the Access To Public Records Act (R.I. General Laws 38-2 et. seq. "APRA"). The purpose of this procedure is to facilitate public access and inspection of public records in a prompt and efficient manner and to provide access to public records within a reasonable period of time. It should be noted that under APRA certain documents or information are not public where disclosure is exempt, is unlawful or constitutes an unwarranted invasion of privacy.

Public Records Requests

Requests for access to public records must be made at the West Warwick Town Clerk's Office between the hours of 8:30 p.m. and 4:30 p.m. on weekdays, (excluding government holidays) or electronically at mkelly@westwarwickri.org

To insure prompt and efficient access to public records in a reasonable amount of time, the "Public Records Request Form" must be submitted to the West Warwick Town Clerk's Office for processing (form is attached below).

APRA provides that the Town has ten (10) business days to respond to an access to public records request or to be granted an extension for good cause.

Documents responsive to the request will be compiled up to the date and time of receipt. If the request is denied, the denial will be made in writing and will state the specific reason(s) for the denial and will indicate the procedure(s) for an appeal.

It should be noted APRA does not require the Town of West Warwick to reorganize, consolidate or compile data not maintained in the format requested.

Exempt Records

Any reasonably segregable portion of a public record that is exempt shall be available after the deletion of information which is the basis of any exclusion and does not violate the intent of APRA.

Public Posting Of Record Requests And Responses

In order to provide access to issues that may be of interest to the general public, the Town may store documents on its website and/or internet link. The Town may refer records requests to the website and/or internet link for any documents already publicly posted and responsive to the request. Completed requests for public records and the responses may also be publicly posted.

Fees & Charges

The Town estimates a fee as established under APRA for responses requiring more than one (1) hour of search, retrieval and segregation of exempt and non-exempt information. The charge for search and retrieval of documents is \$15/hour (after the first hour) and the cost for copies of public records on 8.5 X 11 inch or 8.5 X 14 inch one-sided paper in black ink, is fifteen cents (\$0.15) per page, as established under APRA. All other reproductions (color copies, photographs, maps, electronic data processing records, computer stored data, etc.) will be provided at actual costs. If records are mailed, the postage and cost of mailing materials will also be charged.

Multiple requests from the same entity within a thirty (30) day period will be considered as a single request for the total calculation of allowable charges. The requestor will be required to pay the estimated cost in advance and prior to any records search or reproduction. If the actual total cost is less than the estimate the requestor will be reimbursed the difference. If the actual cost exceeds the estimate, records gathered to that point will be forwarded as responsive to the request along with a revised estimate. The records search will be suspended until payment is received for the revised estimate.

There will be no charge for viewing or downloading any public record posted on the Town's website and/or internet link or for requests requiring that a department use less than one (1) hour of personnel time to search, retrieve, reproduce and segregate exempt and non-exempt information.

TOWN OF WEST WARWICK
Public Records Request Form
RIGL 38-2-3

Brandon Wunder

Name: _____

Address: _____ 3652 W Bryce Ct

City: _____ Anthem **State:** _____ AZ **Zip Code:** _____ 85086

Phone: _____ (602) 815-8040 **Email:** _____ BrandonWunderAZ@gmail.com

Record(s) Requested:

_____ I am requesting information about any code violations related to tall grass and trash/debris over the past 30 days.

Record(s) Request for Real Property-Please list address along with Assessor's Plat and Lot:

Time period request covers:
The Last 30 Days

Per RIGL section 38-2-3(d) the policy of the Town of West Warwick is that this form must be filled out and filed with the Town Clerk. The Town Clerk's Office will forward the request to the appropriate department for response. Per RIGL 38-2-4 a fee of \$.15 per page will be charged for copies of public documents and a research charge in the amount of \$15 per hour will be charged after the first hour for search and retrieval of documents. Multiple requests from the same entity (within a 30 day period) will be considered a single request for the total calculation of allowable charges.

Appeals are in accordance with RIGL 38-2-8.